

8. **Allowances for repairs, &c.**—Should the trustee have *repaired or improved* the estate, the expense of the repairs and improvements, if allowed, will be added to the purchase-money, and the estate be put up at the accumulated sum (*h*).

9. **Re-selling in lots.**—Where the trustee has purchased in one lot, the *cestuis que trust* cannot insist on a re-sale in different lots. If desirous of re-selling the property in that mode, they must pay the trustee his principal and interest, and then, as the absolute owners, they may sell as they please (*i*).

10. **Difficulty of Lord Hardwicke's rule.**—In the application of Lord Hardwicke's rule it was a question constantly occurring, whether the body of creditors at large could be bound by the resolution of the majority to insist upon a re-sale; but by the practice of Lord Eldon, the difficulty on that head is avoided (*j*), for as the creditors cannot by possibility sustain an injury, it is competent to any individual creditor to try the experiment (*k*).

[*494] *11. **The remedy against trustee who has sold the property.**—If before the *cestui que trust* commences proceedings for relief the trustee has passed the estate into the hands of a purchaser *without notice*, the *cestui que trust* may compel the trustee to account for the difference of *price* (*a*), or for the difference between the sum the trustee paid and the real *value* of the estate at the time of the purchase (*b*), with interest at 4 per cent. (*c*).

12. **Purchase of shares by a trustee.**—An administrator had become the purchaser of some shares in Scotch mines, part of the assets, and afterwards sold them to a stranger at a considerable advance of price, and Lord Thurlow decreed the trustee to account for every advantage he had made, but said he could not go the length of ordering the defendant to

(*h*) *Ex parte* Bennett, 10 Ves. 400;
Ex parte Hughes, 6 Ves. 625; Robinson
v. Ridley, 6 Mad. 2.

(*i*) See *Ex parte* James, 8 Ves.
351, 352.

(*j*) *Ex parte* Hughes, 6 Ves. 624.

(*k*) *Ex parte* James, 8 Ves. 353;
and see *Ex parte* Lacey, 6 Ves. 628.

(*a*) Fox *v.* Mackreth, 2 B. C. C.

400; S. C. 2 Cox, 320; Hall *v.* Hallet,
1 Cox, 134; Whichcote *v.* Lawrence,
3 Ves. 740; *Ex parte* Reynolds, 5
Ves. 707; Randall *v.* Errington, 10
Ves. 423.

(*b*) See Lord Hardwicke *v.* Ver-
non, 4 Ves. 411.

(*c*) Hall *v.* Hallet, 1 Cox, 134, see
139.